TENTATIVE RULINGS

DEPARTMENT C33

Judge Sandy N. Leal

June 11, 2026 at 10:00 AM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the Department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5233. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal.App.4th 436, 442, fn. 1 (2012.))

Appearances: Department C33 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C33 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California.

All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time. All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at https://www.occourts.org/media-relations/civil.html before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at https://www.occourts.org/media-relations/aci.html. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at https://www.occourts.org/media-relations.aci.html. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this Department by either coming to the Department at the designated hearing time or contacting the Courtroom Clerk at (657) 622-5233 to obtain login information. For remote appearances by the media or public, please contact the Courtroom Clerk 24 hours in advance so as not to interrupt the hearings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
3	***25-01464728*** ***Dang vs. Jaguar Land Rover North America, LLC***	**Motion to Compel Deposition (Oral or Written)** Plaintiff Evelyn Ngoc Dang's Motion to Compel Compliance with Code of Civil Procedure, section 871.26 is CONTINUED to ___________. The parties may each file a supplemental briefing not to exceed five (5) pages no later than nine (9) court days before the hearing to address any remaining issues. The Court reminds Defendant that repeated noncompliance with Code of Civil Procedure, section 871.26(b)-(d) will result in evidentiary sanctions. (Code Civ. Proc., § 871.26(j)(4).)
4	***23-01368146*** ***Garcia vs. General Motors LLC***	**Motion to Strike or Tax Costs** Defendant General Motors, LLC's Motion to Tax Costs is GRANTED in part and DENIED in part. The Court ORDERS $615.09 taxed from Plaintiff's Memorandum of Costs. The Court exercises its discretion to consider the opposition and reply. **Jury Fees** Jury fees are recoverable. (Code Civ. Proc., § 1033.5(a)(1).) Plaintiff is not seeking jury fees for trial but rather the $150 jury deposit required by California courts. (Code Civ. Proc., § 631.) Defendant provides no authority which precludes the recovery of the jury fee deposit. Thus, the jury fees are not taxed. **Motions to Compel** Motion fees are recoverable. (Code Civ. Proc., § 1033.5(a)(1).) Defendant provides no authority which supports this claim and argues the motions were one-sided and unnecessary. However, each motion was granted at least in part. Thus, the fees to file the motions to compel are not taxed. **Service of Process** Service of process of the summons and complaint is recoverable. (Code Civ. Proc., § 1033.5(a)(4).) However, service of other papers such as depositions or motions are not expressly allowed. Thus, $415.09 is taxed. **Mediator Fees** Plaintiff concedes the $100 fee on 9/15/25 was included in error and requests the Court strike that fee. Defendant seeks to strike the other $100 fee for mediation through Smart ADR on 6/12/25. Mediation fees may be awardable at the court's discretion under Code of Civil Procedure, section 1033.5(c)(4). (Gibson v. Bobroff (1996) 49

		Cal.App.4th 1202, 1209.) Plaintiff has failed to demonstrate the $100 mediation fee on 6/12/25 was reasonably necessary to the conduct of litigation. Thus, the $200 for mediation fees are taxed. **Deposition Fees** Defendant seeks to strike the deposition costs on the grounds it informed Plaintiff it would not be attending the deposition and thus, the taking of a certificate of nonappearance was not necessary. However, the CNA is useful in seeking to compel the deposition which Plaintiff did. Thus, the deposition fees are not taxed.
7	**25-01477832** **Gutierrez vs. Spieckerman**	**Motion for Protective Order** Defendants Paul Spieckerman and Jessy Trostle's motion for a protective order that plaintiff's Special Interrogatories, Set Two, consisting of 140 interrogatories per defendant need not be answered in their entirety is CONTINUED to ______. Code of Civil Procedure Section 2017.020, subdivision (a) states: "The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person. This motion shall be accompanied by a meet and confer declaration under Section 2016.040." Plaintiff opposes the Motion on the grounds that Defendants failed to meet and confer with Plaintiff in good faith prior to filing the Motion. The meet and confer requirement "is designed 'to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order . . . .' This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1435.) This "requires that there be a serious effort at negotiation and informal resolution" and "that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Id.* at pp. 1438-1439.) Defendants have failed to establish that they engaged in "a serious effort at negotiation and informal resolution," or an "attempt to talk the matter over, compare [counsel's] views, consult, and deliberate." (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) Defendants sent a single meet and confer letter to Plaintiff on December 5, 2025, to which Plaintiff responded on December 9, 2025, offering solutions to potentially resolve the issue. Instead of continuing to meet and confer, Defendants filed their Motion. The parties are ORDERED to meet and confer in person or telephonically regarding the issues raised in the Motion within 15 days of the hearing. The parties are to file a joint statement of items still in dispute and their

		respective positions at least 7 court days prior to the continued hearing. No other briefing is permitted. Moving Defendants to give notice.
8	***24-01375951*** ***LaSorte vs. Ghassemieh***	**1) Motion for Leave to Amend** **2) Motion for Terminating Sanctions** **Motion 1 – Motion for Terminating Sanctions** Plaintiff Christina A. LaSorte's Motion for Terminating Sanctions is DENIED. Plaintiff seeks termination sanctions against Defendant Majid Ghassamieh on the grounds that Defendant failed to comply with two Court orders issued on 2/27/25. Code of Civil Procedure section 2023.010 states, in part, "Misuses of the discovery process include, but are not limited to, the following: . . [¶] (d) Failing to respond or submit to an authorized method of discovery. . . . [¶] (g) Disobeying a Court order to provide discovery." Courts are authorized to impose a range of penalties for disobeying a discovery order, including monetary sanctions, evidentiary sanctions, issue sanctions, and terminating sanctions. (Code Civ. Proc., §§ 2023.010, 2023.030;.) The court in *J.W. v. Watchtower Bible and Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1169 explains, "courts have long recognized that the terminating sanction is a drastic penalty and should be used sparingly. [Citation.] A trial court must be cautious when imposing a terminating sanction because the sanction eliminates a party's fundamental right to a trial, thus implicating due process rights. [Citation.] The trial court should select a sanction that is ' " 'tailor[ed] ... to the harm caused by the withheld discovery.' " ' [Citation.] ' "[S]anctions 'should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.' " ' [¶] The discovery statutes thus 'evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.' [Citation.] Although in extreme cases a court has the authority to order a terminating sanction as a first measure [citation], a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective." On 2/27/25, the Court granted two Motions to Compel Further Responses filed by Plaintiff and ordered Defendant to provide verified, supplemental responses to Form Interrogatories (FROG), Set Four, No. 15.1 and FROG, Set Two, 17.1 (relating to Request for Admissions (RFA), Set One, Nos. 8, 10, 11 and 13) within 20 days. (ROA 132, 2/27/25 Minute Order.) The Court notes Plaintiff incorrectly states the underling motion to compel re No. 17.1 concerned RFA Nos. 8-13 and 17. However, the supporting separate statement, and therefore the

		Court's subsequent order, only concerned Nos. 8, 10, 11 and 13. Defendant opposed the underlying motions, appeared remotely at the hearing and submitted on the tentative. (ROA 132.) When Defendant failed to serve supplemental responses as ordered, Plaintiff emailed Defendant three times about his past due responses. (Guizar Decl. ¶¶ 4-6.) Defendant failed to respond. (Id., at ¶ 7.) In his opposition regarding No. 15.1 (ROA 246), Defendant contends he provided a verified supplemental response to No. 15.1. The Court notes Defendant's supplemental response and verification are dated 5/31/26, the day before Defendant filed his opposition. (Ghassemieh Decl., Attch. A.) Defendant's supplemental response covers all affirmative defenses rather than identifying each affirmative defense asserted in his answer and specifying the facts, witnesses and documents supporting the affirmative defenses as required by the interrogatory. The Court's 2/27/25 order identified the same defect. As to No. 17.1, Defendant's opposition (ROA 244) attempts to relitigate the merits of the underlying motion to compel by stating his responses to RFA Nos. 8, 10, 11 and 13 are complete, accurate, unqualified responses that do not require further explanation. Defendant opposed the underlying motion on the same grounds. In its 2/27/25 order, the Court order explained why Defendant's argument was incorrect. Namely, the Court explained: "Defendant incorrectly reads 17.1. A party must provide information to RFAS that are not an 'unqualified admission' not an 'unqualified response.' Because Defendant denied RFA Nos. 8, 10, 11 and 13, he must provide a response to 17.1." (ROA 132.) Despite Defendant's failure to comply with the Court's 2/27/25 orders, the Court declines at this time (and without prejudice to the moving party seek the same relief in the future) to impose terminating sanctions. The record does not clearly show lesser sanctions would be ineffective. Defendant is ordered to comply with the Court's 2/27/25 orders and provide verified supplemental discovery responses that are without objection within 20 days of the date of this hearing. If Defendant fails to promptly comply with this order, the Court will consider imposing sanctions which may include monetary sanctions or terminating sanctions including striking Defendant's answer and entering default. **Motion 2 – Motion for Leave to Amend** Plaintiff Christina A. LaSorte's Motion for Leave to Amend is GRANTED. Plaintiff seeks leave to amend her complaint to add a request for damages and to remove Merchants Bonding Company (Mutual) as a defendant. The court may, in the furtherance of justice, and on such terms as may be proper, allow amendment of a complaint at any time before or after

commencement of trial. (Code Civ. Proc. §§ 473(a)(1), 576.) There is a general policy of great liberality in allowing amendment of pleadings at any stage of the litigation to allow cases to be decided on their merits. (*Desny v. Wilder* (1956) 46 Cal.2d 715, 751.)

As *Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163 [cleaned up] explains:

"It is well established that California courts have a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others. Indeed, it is a rare case in which a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case. Thus, absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail."

Plaintiff seeks to remove Merchants as a defendant because she dismissed Merchants with prejudice on 10/15/25 after she resolved her claims against it. Defendant does not oppose this portion of the amendment.

Plaintiff also seeks to add a request for damages related to her first cause of action for violation of the Consumers Legal Remedies Act (CLRA). Plaintiff's first cause of action currently only seeks injunctive relief. Under the CLRA, consumers may initiate an action for injunctive relief at any time. (Civ. Code § 1782, subd. (d).) The CLRA provides, in relevant part: "Not less than 30 days after the commencement of an action for injunctive relief, and after compliance with [the notice requirement], the consumer may amend his or her complaint *without leave of court* to include a request for damages." (Civ. Code § 1782, subd. (d) [emphasis added].)

Plaintiff complied with the CLRA's notice requirement under Civil Code section 1782, subdivision (a), by sending Defendant a CLRA Notice and Demand Letter on January 23, 2024. (See Guizar Decl., at ¶ 7; COE, Ex.3.) Defendant received the letter and did not offer an appropriate correction within 30 days. (See Guizar Decl., at ¶ 8; COE, Ex. 4.) Plaintiff therefore has established that she may amend her complaint to add a request for damages without leave of court pursuant to section 1782, subdivision (d).

Plaintiff emailed the proposed First Amended Complaint (FAC) to Defendant on November 3, 2025 along with a Stipulation to file the FAC. (See Guizar Decl., at ¶¶ 9-10; COE, Exs. 2, 5.) Defendant did not respond. (See Guizar Decl., at ¶ 11.) Plaintiff filed the instant motion on November 20, 2025.

Defendant argues he would be prejudiced by allowing the amendment to add the CLRA damages so close to trial because it would require additional discovery to defend this "new matter".

		Plaintiff has not explained why she waited over a year and a half to file the instant motion. Nevertheless, Defendant was on notice that Plaintiff would amend the complaint to add CLRA damages. More specifically, the complaint provides: "At this time, Plaintiff does not seek "damages" under Civil Code § 1780. The CLRA provides that a complaint for violations may be amended without leave of court should the violations not be remedied within 30 days to add a prayer for damages. Should the violations complained of herein not be remedied within the requisite time frame, Plaintiff will amend the complaint to seek all available relief under the CLRA." (Compl., ¶ 45.) Further, the prayer for relief states, "no request for damages is made under the CLRA until such a time as the CLRA cause of action is amended to add damages". (Compl., Prayer for Relief, ¶ 6.) Thus, from the time Defendant was served with the complaint, he has been fully aware that Plaintiff would seek damages under the CLRA if the violations were not remedied within 30 days. In addition, the amendment to add the request for CLRA damages does not add "new matter" as Defendant contends. The FAC does not add new violations, causes of action, facts or circumstances. "[W]here an amendment provides merely the addition of matters essential to make the original cause of action complete the amendment should certainly be allowed by the court. Such an amendment effects no change in the nature of the case, and can therefore cause no surprise or prejudice to the adverse party." (*In re Hunter's Estate* (1961) 194 Cal.App.2d 859, 865 [cleaned up].) Accordingly, Defendant has not shown he will be prejudiced by the amendment. The motion complies with California Rules of Court, Rule 3.1324. Based on the policy favoring leave to amend, the motion for leave to amend is GRANTED. Plaintiff is to file the First Amended Complaint within 10 days.
9	***22-01260184*** ***Melikian vs. Moradian***	**Motion to Set Aside/Vacate Dismissal** The unopposed motion of plaintiff Arshavir Melikian for an order vacating the dismissal of the action entered on June 25, 2025 is GRANTED. Plaintiff asks that the dismissal be set aside under the provision for mandatory relief for attorney fault in Code Civ. Proc. § 473(b). That provision states: Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever

		relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. Plaintiff has submitted the declaration of attorney Arno H. Keshishian in which he declares that he failed to attend the hearing on the OSC re: dismissal held on June 26, 2025 because he inadvertently calendared the hearing to June 26, 2026. Counsel further declares that he was in the middle of a trial at the time, suggesting that his mind was elsewhere. Based on the declaration of fault, the Court grants the motion and sets a status conference for ___________________, 2026. Plaintiff's counsel is to submit a status report at least five days before this hearing. Plaintiff's counsel should be advised that, to the extent plaintiff seeks a default judgment, the Court's file does not contain any entries of default, which would be necessary before plaintiff can seek default judgment.
11	***24-01435993*** ***Noroski vs. Sienna Palmer Ogbevoen, D.D.S., Inc.***	**Motion for Summary Judgment and/or Adjudication** The Motion for Summary Adjudication of Plaintiff's First Amended Complaint (FAC) by Defendants Sienna Palmer Ogbevoen, D.D.S., Inc. and Sienna Nicole Palmer, D.D.S. is DENIED. Defendant's Request for Judicial Notice (ROA 254) of filings in this matter is granted. Plaintiff's objections to evidence (ROA 348) are overruled. Defendants' objections (ROA 36) are also overruled. Defendants move for summary adjudication of Plaintiff's ninth cause of action for false advertising in violation of Business & Professions Code § 17500 and Plaintiff's tenth cause of action for unfair competition in violation of Business & Professions Code § 17200. **Legal Standard:** Code of Civil Procedure section 437c(f)(1) states, "A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." Section 437c(c) provides, "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as

		to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." Finally, section 437c(p)(2) states, "A defendant or cross-defendant has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." <u>Ninth Cause of Action – False Advertising:</u> Plaintiff previously moved for summary adjudication of this claim, which the Court took under submission on 5/21/26. Now, Defendants move for summary adjudication of the claim on the grounds that (1) Defendants' alleged false advertisements were not likely to deceive a reasonable consumer, and (2) Plaintiff lacks standing and cannot show actual reliance. Section 17500 prohibits untrue or misleading advertising. It "broadly prohibit[s] false or misleading advertising, declaring that it is unlawful for any person or business to make or distribute any statement to induce the public to enter into a transaction 'which is untrue or misleading, and which is known, or which by the exercise of reasonable care should be known, to be untrue or misleading." (*People v. Johnson & Johnson* (2022) 77 Cal.App.5th 295, 317.) "FAL actions may be brought by the Attorney General, designated public prosecutors, or 'any person who has suffered injury in fact and has lost money or property' as a result of a violation of the FAL. (§ 17535.) The trial court may enjoin FAL violators. (§ 17535.) Similar to the UCL, the Attorney General and other public prosecutors may seek civil penalties not to exceed $2,500 for each violation of the FAL. (§ 17536, subd. (a).)" (*Id*. at p. 318) To prevail under a UCL false advertising claim, the plaintiff "must show that the misrepresentation was an immediate cause of the injury-producing conduct, the plaintiff need not demonstrate it was the only cause." (*In re Tobacco II Cases* (2009) 46 Cal.4th 298, 326; see *People*

v. Johnson & Johnson (2022) 77 Cal.App.5th 295, 326–327.) "[A] presumption, or at least an inference, of reliance arises wherever there is a showing that a misrepresentation was material. A misrepresentation is judged to be 'material' if 'a reasonable man would attach importance to its existence or nonexistence in determining his choice of action in the transaction in question,' and as such materiality is generally a question of fact unless the 'fact misrepresented is so obviously unimportant that the jury could not reasonably find that a reasonable man would have been influenced by it." (*In re Tobacco II Cases*, *supra*, 46 Cal.4th at 327.)

Here, Plaintiff alleges Defendants made untrue or misleading statements on their website. (FAC, ¶¶ 117-127.) Plaintiff alleges she viewed Defendants' website in 2023 and relied on Defendants' advertising when selecting Dr. Palmer as her new dentist. (Id.) Plaintiff seeks restitution of the money she paid to Defendants and equitable relief including issuance of an injunction for this violation prohibiting Defendants' false advertising and requiring Defendants to notify current and former patients of the false advertising and make corrective disclosures. (FAC, ¶¶ 127, 128.)

The evidence presented regarding this claim is similar to the evidence the Court previously analyzed in support of Plaintiff's motion for summary adjudication of the same claim. In short, Plaintiff presents evidence that Defendants' website contained misrepresentations including the following:

(1) Patient testimonials regarding the prior dentist which had been modified to replace the prior dentist's name (Dr. Schaub) with Defendant Palmer's name. (Undisputed Material Facts [UMFs] 8, 15, 30.) Defendants do not dispute these false statements, which have since been removed, but contends they were made by the third party website manager without her knowledge and were not material to Plaintiff's decision to visit Defendants' office. (UMF 16.)
(2) Statements on Defendants' website that Defendants' practice was locally owned and operated since 1984 and "Mission Viejo Proud Since 1984," which Plaintiff asserts were false because a new operating entity took over the practice under Dr. Palmer's leadership in 2020. (UMFs 17-18, 28.) Again, Defendant asserts that a reasonable patient would have known Dr. Palmer was a younger dentist who could not possibly have been practicing since 1984 and such advertisements were not material to Plaintiff's decision to obtain dental treatment with Defendants. (UMF 29.)

First, Defendants assert that the patient testimonials were mere statements of opinion or "puffery" which should not have been considered "an objective statement of fact." (Motion, p. 6.) They further argue that Dr. Palmer purchased the business from Dr. Schaub, including the business goodwill developed in the community, so she is entitled to advertise the business's history in the community. (Id.) They

		assert the website clearly reflects that Dr. Palmer is a younger dentist who could not have been practicing since the 1980s. Second, Defendants assert that Plaintiff was refunded her payment for the disputed Icon treatment and cannot prove economic damages which are necessary to demonstrate standing to pursue this claim. (Motion, pp. 7-8.) Defendants assert Plaintiff's only damages are non-economic damages because she is unhappy with her smile and Plaintiff admits the alleged white spots were present for years before the treatment. (Id. at pp. 9-10.) Plaintiff presents evidence that she would not have scheduled her appointments or obtained services from Defendants if she knew the patient testimonials on Defendants' website were modified to refer to Dr. Palmer rather than Dr. Schaub (Plaintiff's Add'l Fact 15; Plaintiff Decl., ¶¶ 3-11.) Plaintiff also presents evidence that although Defendants refunded the $600 for dental services, they did not refund the $40 she paid for whitening supplies. (Plaintiff's Add'l Fact 38.) Plaintiff further asserts, citing a federal district court decision, that a Defendant cannot defeat a false advertising claim by merely refunding the disputed payment, especially when Plaintiff seeks injunctive relief as a remedy, as Plaintiff does here. (Opp. at 22:9-18.) In the absence of California law on point, the Court declines to address this issue because Plaintiff has presented evidence that she paid at least $40 which was not refunded, and Plaintiff also seeks injunctive relief. In reply, Defendants assert that it was not until the end of the appointment, when Plaintiff must have known Defendant Palmer's age, that she purchased the $40 whitening supplies, and that Plaintiff was a sophisticated consumer who should not have believed the alleged false statements on Defendants' website. Materiality of false advertisements "is generally a question of fact." (*In re Tobacco II Cases*, *supra*, 46 Cal.4th at 327.) Here, Plaintiff has demonstrated a triable issue as to materiality and standing based on her own declaration that she would not have obtained Defendants' dental services but for the false advertisements and that she paid an unrefunded $40 for dental services. <u>Tenth Cause of Action – Unfair Competition:</u> In this cause of action, Plaintiff alleges Defendant violated the Unfair Competition Law (UCL), Business & Professions Code § 17200 et seq., by (1) operating without a fictitious business name permit, and (2) engaging in unlawful behavior including the false advertising discussed above. (FAC, ¶¶ 135-136.) "This court has recognized that any violation of the false advertising law necessarily violates the UCL. We have also recognized that these laws prohibit not only advertising which is false, but also advertising which

		although true, is either actually misleading or which has a capacity, likelihood or tendency to deceive or confuse the public. Thus, to state a claim under either the UCL or the false advertising law, based on false advertising or promotional practices, it is necessary only to show that 'members of the public are likely to be deceived." (*Kasky v. Nike, Inc.* (2002) 27 Cal.4th 939, 950–951 [cleaned up].) Therefore, because there is a triable issue as to Plaintiff's false advertising claim as discussed above, there is necessarily a triable issue as to Plaintiff's UCL claim and the Court need not address the fictitious business permit issue.
13	***25-01457297*** ***Primex Clinical Laboratories, Inc. vs. Hughes***	**Motion to Lift Stay Pending Arbitration** Plaintiff Primex Clinical Laboratories, Inc.'s Motion to Lift Stay Pending Arbitration is GRANTED. Plaintiff moves to lift the stay pending arbitration due to the dismissal from this action, without prejudice, of defendants Michael Hughes, Rand Ajinah, and Trudy Rosen (collectively, "Former Employees"). Plaintiff brings this motion pursuant to Code of Civil Procedure sections 128, subdivision (a), and 1281.4. Defendants David White, Rajit Malhotra, Alex Nguyen, Derek Nguyen, Varun Kapoor, MD Tox Laboratory, Inc. dba Innovative Health Diagnostics, LLC ("IHD") and Nura Health, Inc. ("Nura Health") (collectively, "IHD and Nura Defendants") argue Plaintiff's dismissal of the Former Employees is an improper attempt to evade this Court's order to arbitrate. IHD and Nura Defendants also argue lifting the stay would interfere with Michael Hughes and Rand Ajinah's rights to have the arbitrator decide their declaratory relief claim on Plaintiff's alleged trade secrets. Code of Civil Procedure section 128, subdivision (a)(2) and (5) provides: "Every court shall have the power to do all of the following: . . . [¶] (2) To enforce order in the proceedings before it, or before a person or persons empowered to conduct a judicial investigation under its authority . . . [and] [¶] (5) To control the furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto." Code of Civil Procedure section 1281.4 provides in relevant part, "If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (See also *Cinel v. Christopher* (2012) 203 Cal.App.4th 759, 769 ["Section 1281.4 provides a stay of pending litigation while a related arbitration is proceeding."].) In addition, a plaintiff may dismiss an action or any defendant, with or without prejudice, at any time before the actual commencement of trial.

(Code Civ. Proc. § 581, subds. (b)(1), (c).) A plaintiff may do so even when the action has been ordered to arbitration, but before the arbitration has commenced. (*Cardiff Equities, Inc. v. Superior Court* (2008) 166 Cal.App.4th 1541, 1549.)

On 9/5/25, the Court granted a motion to compel arbitration, in part, as to the Former Employees and denied the motion, in part, as to IHD and Nura Defendants. The court ordered Plaintiff to arbitrate all of its claims against the Former Employees and stayed the action pending the outcome the arbitration. (See ROA 49; Gutenplan Decl., ¶ 6, Ex. A.) Plaintiff did not commence arbitration. Instead, in December 2025, Plaintiff voluntarily dismissed the Former Employees from this action without prejudice. (See ROA 54, 62; Gutenplan Decl., ¶ 7.) Plaintiff filed the instant motion on 2/3/26.

On 2/5/26, Hughes and Ajinah initiated arbitration against Plaintiff with JAMS seeking declaratory relief on Plaintiff's trade secret claims among others. Plaintiff filed an answer on 3/11/26. (Hrutkay Decl., ¶ 5; Ex. A (Statement of Claim); Ex. B (Answer).) An arbitrator was appointed on 5/20/26. (Hrutkay Decl., ¶ 6, Ex. C.)

Plaintiff timely dismissed the Former Employees from this action before commencing arbitration of its claims against the Former Employees. Thus, all arbitrable claims at issue here have been extinguished.

IHD and Nura Defendants' contention that the stay should remain in place because Hughes and Ajinah commenced arbitration lacks merit. Code of Civil Procedure section 1281.4 does not authorize a stay of a court action based on an arbitration to which the parties in the court action are not also parties in the arbitration, nor does it permit a stay based on an arbitration that this Court never ordered. The Fourth District Court of Appeal addressed this issue in *Leenay v. Superior Court* (2022) 81 Cal.App.5th 553. In *Leenay*, the court held "section 1281.4 applies only when a court has ordered parties to arbitration, the arbitrable issue arises in the pending court action, and the parties in the arbitration are also parties to the court action." (*Id*. at p. 558.) The defendant argued "the plain language of section 1281.4 requires (1) an overlapping question of law or fact between the arbitration and the court action and (2) only one party in common between both proceedings." (*Id*. at p. 564.) The court rejected this argument, explaining "nothing in the statutory language supports that interpretation. By definition, a controversy arises between the parties to an agreement—not one party to it and a stranger to the agreement. Both parties who have agreed to arbitrate the controversy must be parties in the pending court action." (*Ibid*.) That is not the case here. IHD and Nura Defendants are not parties to the Hughes and Ajinah JAMS arbitration and Hughes and Ajinah are no longer parties to this action. In other words, only Plaintiff is a party to both this action and the current JAMS arbitration. Thus, section 1281.4 does not apply.

Further, IHD and Nura Defendants' reliance on section 1281.2 is misplaced. "By its plain language, the stay provisions of section 1281.2

		may be invoked only by a petition of a party to an arbitration agreement. This language is neither vague nor ambiguous, and it makes perfectly good sense—because no one other than a party to the arbitration agreement ought to be allowed to interfere with the arbitration process." (*One World Networks Integrated Technologies, Inc. v. Duitch* (2002) 103 Cal.App.4th 1038, 1044 [cleaned up].) This court has already found that IHD and Nura Defendants are not parties to any arbitration agreement with Plaintiff. Thus, IHD and Nura Defendants lack standing to invoke section 1281.2 to maintain a stay based on an arbitration between Plaintiff and individuals who are no longer parties to this action. The motion is GRANTED. The Court lifts the stay in this action.
14	***24-01431041*** ***SOCAL CONSTRUCTION FUND CONTROL, LLC vs. DEVIANTE LLC***	**1) Motion to Compel Answers to Form Interrogatories** **2) Motion to Compel Answers to Special Interrogatories** **3) Motion to Compel Answers to Special Interrogatories** **4) Motion to Compel Deposition (Oral or Written)** **5) Motion to Compel Production** **MOTION NO. 1:** Cross-Complainant Lorez GP's motion to compel Cross-Defendant Kal Milan Construction, Inc., to serve full and complete verified answers, without objections, to Form Interrogatories - Construction Litigation, Set No. One, is MOOT. On November 24, 2025, Cross-Defendant served verified responses, without objections, to the discovery request. Therefore, the Motion is MOOT. Cross-Defendant is ordered to pay $682.50 in sanctions to Cross-Complainant within 30-days of notice of this ruling. Moving party to give notice. **MOTION NO. 2:** Cross-Complainant Lorez GP's motion to compel Cross-Defendant Kal Milan Construction, Inc., to serve full and complete verified answers, without objections, to Special Interrogatories, Set No. One, is MOOT. On November 24, 2025, Cross-Defendant served verified responses, without objections, to the discovery request. Therefore, the Motion is MOOT. Cross-Defendant is ordered to pay $682.50 in sanctions to Cross-Complainant within 30-days of notice of this ruling. Moving party to give notice. **MOTION NO. 3:** Cross-Complainant Lorez GP's motion to compel Cross-Defendant Kal Milan Construction, Inc., to serve full and complete verified answers and

to produce documents, without objections, to Requests for Production of Documents, Set No. One, Nos. 1 through 51, is MOOT.

On November 24, 2025, Cross-Defendant served verified responses, without objections, to the discovery request. Therefore, the Motion is MOOT.

Cross-Defendant is ordered to pay $682.50 in sanctions to Cross-Complainant within 30-days of notice of this ruling.

Moving party to give notice.

MOTION NO. 4:
Cross-Complainant Lorez GP moves to compel Cross-Defendant Khalil Abdallah Milan to serve full and complete verified answers, without objections, to Special Interrogatories, Set No. One, Interrogatory Nos. 1 through 28, is MOOT.

On November 24, 2025, Cross-Defendant served verified responses, without objections, to the discovery request. Therefore, the Motion is MOOT.

Cross-Defendant is ordered to pay $682.50 in sanctions to Cross-Complainant within 30-days of notice of this ruling.

Moving party to give notice.

MOTION NO. 5:
Cross-Complainant Lorez GP's motion to compel Cross-Defendant Khalil Abdallah Milan ("Milan") to appear and testify at his noticed deposition is GRANTED.

Code of Civil Procedure section 2025.450 provides in pertinent part: "(a) If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice."

Cross-Complainant noticed the second session of Milan's deposition for January 15, 2026, based on an email exchange with Milan's counsel in which Milan's counsel stated that "we will go with one of the January dates (13^{th} or 15^{th}). I will check and get back to you." (Levine Decl., ¶ 2, Ex. 2.) Milan's counsel did not get back to Cross-Complainant regarding the deposition dates and Cross-Complainant served the Notice of Continued Deposition on Milan on December 29, 2025. (Levine Decl., ¶ 2, Ex. 1.) Milan did not object to the Notice of Continued Deposition,

		therefore, Cross-Complainant proceeded with the deposition. (Levine Decl., ¶ 2, 4.) However, neither Milan nor his counsel appeared for the continued deposition and Cross-Complainant had to take an Affidavit of Nonappearance. (Levine Decl., ¶ 4.) Milan has opposed the Motion and states on January 21, 2026 (after the filing of this Motion), Milan's counsel provided dates for the continued deposition and that Milan remains available for his deposition. Milan is ORDERED to appear for his deposition on a mutually convenient date within 10-days of the service of this order. Milan is also ORDERED to pay $1,636.20 in sanctions to Cross-Complainant within 30-days of the date of service of the notice of this order. Moving party to give notice.
15	***23-01333121*** ***Takashima vs. Lin***	**1) Motion to Be Relieved as Counsel of Record** **2) Motion to Be Relieved as Counsel of Record** The motions of Uplift Law PC to withdraw as attorney of record for Defendants Russell Lin and Virus International are DENIED. Uplift Law provides a declaration from its paralegal stating the mandatory form Order Granting Attorney's Motion To Be Relieved As Counsel-Civil (MC-053) was served on Defendants along with the other moving papers. However, the Court ordered counsel to file the missing orders as well. Counsel failed to do so after being given three chances to properly file its motions. Thus, the Court denies Uplift Law's **1.** motions as procedurally defective for its failure to comply with California Rules of Court, rule 3.1362(e).